

The Bihar Goshala Rules, 1953

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[1.](#)

[Short title.](#)

[- These Rules may be called the Bihar Goshala Rules, 1953.](#)

[2.](#)

[Definition.](#)

[- In these Rules unless there is anything repugnant in the subject or context,-](#)

[\(a\)](#)

'form' means a form appended to these Rules;

(b)

'section' means a Section of the Act;

(c)

'the Act' means the Bihar Goshala Act, 1950; and

(d)

all other words and expressions used herein but not defined shall have the meanings respectively assigned to them under the Act.

3.

Federation and its constitution.

(1)

The Federation shall consist of twenty-five members including a Chairman, a Secretary, a Joint Secretary and a Treasurer.

(2)

The members of the Federation shall be elected by the trustees of the goshalas of the State in the following manner, namely;-

(i)

within three months of the preparation of the register of goshalas a notice specifying the date, place and time of the meeting for election of the members and office-bearers of the first Federation shall be sent by the Registrar under postal certificate to each trustee of the registered goshalas at least fifteen days before the date of the meeting;

(ii)

the Registrar shall preside at the meeting until the trustees present in the meeting have elected a President from amongst themselves to preside over the meeting;

(iii)

the President so elected shall then preside over the meeting for the election of members and office-bearers of the Federation;

(iv)

at least one half of the total number of goshalas or fifty trustees, whichever is less, shall form the quorum for the meeting;

Provided that if at any meeting the quorum is not present, the Registrar or the President, as the case may be, may adjourn the meeting to some other date and the notice of such meeting shall be issued in the same manner as is prescribed in clause (i) and no quorum shall be required for an adjourned meeting;

(v)

all votes shall be recorded by the trustees in person in such manner as may be determined by the Registrar or the President, as the case may be; and

(vi)

the election of each member or officer bearer shall be by a majority votes and in the case of an equality of votes the President shall have a second or casting vote.

(3)

The President, office-bearers and other members of the Federation shall continue to hold office until they cease to be members by reason of death, resignation or otherwise, but as nearly as possible one fourth of the members shall retire as soon as may be on the expiration of every second year in accordance with the procedure laid down in sub-rules (1) and (5):

Provided that the term of a person elected as a member or office-bearer to fill a casual vacancy shall be the unexpired term of the members or office bearer in whose place he has been elected.

(4)

The members shall be divided into four categories and the members to be placed in each category shall be determined by the President by drawing lots in public in such manner as he may deem fit after notifying in the Bihar Gazette the time at which lots will be drawn; and the term of office of a member shall expire at the expiration of the second, fourth, sixth and eighth year from the date of the constitution of the Federation according as he is placed in the first, second, third or fourth category.

(5)

The President shall cause to be published at the office of the Federation a statement showing the term of office of members as determined under sub-rule (4).

4.

Procedure for the conduct of other business.

- The Federation shall determine the procedure for the conduct of its business in respect of other matters;

Provided that-

(i)

all decisions shall be taken by a majority of voter and in the case of an equality of votes the President shall have a second or casting vote; and

(ii)

every proposal in a meeting shall be duly seconded.

5.

Proceedings to be recorded.

- Proceedings of the meetings of the Federation shall be recorded in a Minute Book signed by the Chairman and the Secretary of the Federation.

6.

Submission of statement by trustee.

(1)

The trustee of every goshala shall submit the statement required under sub-section (1) of Section 5 in Form I which shall be signed by the trustee or his authorised agent and verified by the person signing the statement in the manner prescribed at the bottom of the Form.

(2)

When a trustee does not submit the statement within the period specified in sub-section (1) of Section 5, the Registrar may issue a notice to such trustee in Form II requiring him to submit the statement.

(3)

After the submission of the statement under sub-rule (1) the Registrar shall grant a receipt in Form III to the trustee or his agent.

7.

Maintenance of register.

- The register of goshalas maintained by the Registrar under Section 6 shall be in Form IV and the Registrar shall grant a certificate of registration in Form V.

8.

Change in particulars of goshala to be reported.

- A trustee of a goshala or his authorised agent shall report any change in the particulars of the goshala in Form VI duly verified at the bottom.

9.

Notice of inquiry.

- The notice of inquiry under Section 7 to be served on the Director and on the trustee of a goshala shall be in Form VII.

10.

Notice to be sent to trustee of goshala.

- After fixing the area of a goshala under sub-section (i) of Section 9, the Director shall send a notice in Form VIII to the trustee of that goshala and a copy of that notice to the Registrar.

11.

Issue of notice by Registrar.

- On the application of a trustee of goshala under sub-section (2) of Section 9 against a trader the Registrar may for the purpose of ascertaining the moneys payable by the trader to the trustee, issue a notice in Form IX.

12.

Manner of payment of fees to the trustees.

(1)

The fees paid by the trustees of goshala under Section 10 shall be deposited in a lump sum or in instalments as may be

determined by the Registrar, in the goshala Fund by means of a bank draft or by crossed postal order in favour of the Registrar.

(2)

The Goshala fund shall be treated as a local fund under Rule 573 of the Bihar Treasury Code. Volume 1, and the Registrar shall operate the fund through Banking account at the Patna Treasury under Rule 576 of the Bihar Treasury Code, Volume I, under the head detailed below:-

"Deposits and advances-Deposit not bearing interest-Other deposit account-Accounts of local funds-Other miscellaneous fund-Goshala Fund."

13.

Issue of notice of demand for failure to pay fees.

- On the failure of a trustee to pay the fee required under Section 10 the Registrar shall issue a notice of demand to the trustee in Form X.

14.

Issue of notice of demand by Registrar.

- When any order is passed by the Registrar under sub-section (1) Section 11 he shall in the case of money payable by the trader issue a notice of demand in Form XI and in the case of money payable by a trustee in Form XII.

15.

Statement of accounts to be furnished by trustee.

- The trustee of every goshala shall submit to the Registrar a statement of account required under sub-section (3) of Section 12 in Form XIII.

16.

Money to be deposited in the name of Treasurer and Secretary.

- Money held by the trustees of goshala for day to day expenses shall be deposited in the joint name of the Treasurer and the Secretary of the goshala either with reliable firms in consultation with the Registrar or in the Postal Savings Bank at the nearest Post Office and the money not required for day-to-day expenditure shall be invested in the Government Securities or Debentures or with reliable firms with the approval of the Registrar.

17.

Regulations.

- The regulations made under Section 17 may provide for-

(a)

a committee of management for a goshala the number and manner of election of members of such committee and the term of office of the members: and

(b)

the conditions of service of the servants of goshala.

18.

Service of notices.

- The notice required to be issued under the Act or these Rules shall be served either by the Sub-divisional Magistrate of the area or by registered post with acknowledgement due.

19.

Preparation of audit note.

- The auditor appointed under Section 12 shall prepare an audit note in Form XIV.

Form I

Part I ? [Rule 6(i)]

Statement of registration of goshala under Section 5 of the Bihar Goshala Act, 1950 (XXVIII of 1950)

Name and address of trustees

Mode of succession of trustees

Details of Property

Gross annual income for three years preceding the year in which the statement is submitted or for the periods which has elapsed since the establishment of goshala

Sources of income

Amount of expenditure for the period referred to
in column 5

Three copies of the memorandum and Rules and
Regulation, if any of applicant goshala

Remarks

Movable

Immovable

1

2

3

4

5

6

7

8

9

Part II ? [Section 5(1)(b) of the Bihar Goshala Act, 1950]

Register of Buildings

Serial No.

Name of building

Where situated with boundary and plot No.

Description of building

Cost of construction or purchase

Purpose for which used

Remarks

1

2

3

4

6

7

Part III ? Under Section 5(1)(b) of the Goshala Act, 1950

Register of Lands

Serial No.

Area

Description and situation with boundary

For what purpose held

How held, that is, whether

Formally acquired under the Law

Rented

Free to rent

1

2

3

4

5

6

7

Date when formally acquired and when taken up on
rent or free of rent

If rented, amount of annual rent

If not formally acquired, terms on which held
Reference to title deeds, maps, etc.
Remarks and initials of Registrar

8
9
10
11
12
Form II
[Rule 6 (2)]
Notice from under sub-section (5) of Section 5 of the Bihar Goshala Act, 1950 (Act XXVIII of 1950)
To
.....
.....
.....

I, Registrar of Goshalas, Bihar in exercise of the powers conferred on me under sub-section (5) of Section 5 of the Bihar Goshala Act, 1950, hereby notify you to submit to me within a month of the receipt of this notice, statement in Form (II, IIA, IIB, duly verified in Form no. III) I (enclosed).

1. Three copies of the Memorandum and Rules and Regulation, if any, of such Goshala.
2. Particulars of Reserve Fund, if any, with details of investment.

Registrar of Goshalas, Bihar.

Patna, the.....200.

N.B. (1) The statement shall be accompanied by a copy of the deed instrument establishing the Goshala or such extract thereof as in the opinion of the Registrar sufficiently shows the original nature and object of the Goshala if no such deed or instrument has been executed or if a copy thereof cannot be obtained, the statement shall contain full particulars of the origin, nature and object of the Goshala so far as they are known to the trustee.

(2)
The statement shall be signed by every trustee or by his agent specially authorised in this behalf.

(3)
The person signing the statement shall verify it at the bottom.

Form III
[Rule 6 (3)]
Acknowledgement of statement filed under Section 5 of the Bihar Goshala Act, 1950 (Act XXVIII of 1950)

Received a statement in Form I from the trustee or trustees for
registration under Section 6 of the Bihar Goshala Act, 1950 (Bihar Act XXVIII of 1950).

Registrar of Goshalas, Bihar.

Dated the.....200.

Form IV
(Section 6)

Rule 7

Part I ? Register of Goshalas

Name and address of the Goshala.....

Date

Serial No.

Name and address of the trustees

Mode of succession to the office of the trustee

Details of property

Immovable

Movable

Land

Value

Building

Particular of investments

Value

In security Deposits

In cash

Valuation of Movable articles appliances, etc.

1

2

3

4

5

6

7

8

9

10

11

Total valuation

Gross income for three years preceding the year

to which the income for the periods which has elapsed since the
establishment of such Goshala

Sources of income

Annual expenditure of the last three years

Any other particulars prescribed by the Rule

Whether filed or recorded.

Remarks

Signature of Registrar.

12

13

14

15

16

17

18

19

Part II ? [Section 5 (1) (b) of the Bihar Goshala Act, 1950]

Register of Buildings

Serial No.

Name of Buildings

Where situated with boundary Plot No.

Description of building

Cost of construction or purchase

Purposes for which used

Remarks

1

2

3

4

5

6

7

Rs. P.

Part III ? [Section 5(i)(b) of the Bihar Goshala Act, 1950]

Register of Lands

Serial No.

Area

Description and situation with boundary

For what purpose held

Formally acquired under the law

Rented

Free of rent

1

2

3

4

5

6

7

Date when formally acquired and when taken up on
rent or free of rent

If rented amount of annual rent

If not formally acquired, terms on which held

Reference to title deeds, maps, etc.

Remarks and initials of Registrar

8

9

10

11

12

Form V

(Rule 7)

Certificate of Registration under Section 6 of the Bihar Goshala Act, 1950 (Bihar Act XXVIII of 1950)

Office of the Registrar of Goshalas, Bihar

In the matter of.....

I do hereby certify that a statement of particulars relating to the above Goshala has been filed under Section 5 of the Bihar Goshala Act, 1950 and registered this day in my office and that the said Goshala has been duly registered pursuant to the provisions, of the said Act.

Dated this.....day of..... two thousand

Registrar of Goshalas, Bihar.

Dated.....200.

Form VA

Budget Estimate for..... Goshala at, for the year 200.

Serial no.

Particulars of income

200 Actual income

200 Actual or Revised

Budget Estimate

Approved by Registrar

Remarks

1

2

3

4

5

6

7

Rs.

Rs.

Rs.

Rs.

Rs.

Opening Balance...

1.

Briti, donation, gift, subscription, etc.

2.

By sale of milk.

3.

By sale of (a) livestock and (b) manure.

4.

By rent, revenue and sale of produce.

Total...

Expenditure.

1.

To rent, taxes, etc...

2.

Purchase of fodder...

3.

Live-stock, implements, etc...

4.

Establishment and miscellaneous expenditure.

5.

Contingency Closing Balance Deficit...

Total...

Copy of the resolution of the Committee adopting the Budget.

Secretary

Approved and countersigned by

Registrar of Goshalas, Bihar

Form VI

(Rule 8)

Amendment to statement under Section 8 of the Bihar Goshala Act, 1950 (Bihar Act XXVIII of 1950)

I..... son of.....on behalf of.....hereby apply for amendment to the particular number of form of registration.

1. Registered no.....

2. Name of Goshala.....

3. Column number of statement in which the amendment is required...

4. Particulars of the amendment with descriptive note.....

5. Remarks.....

Dated..... 200.

Signature

[Verification form under Section 5 (4) of the Bihar Goshala Act, 1950]

I.....son of.....resident of thana.....district.....

hereby solemnly verify that all the information's given are true to the best of my knowledge and belief and information.

Dated.....200.

.....Signature

Form VII

(Rule 9)

Notice of enquiry under Section 7 (i) of the Bihar Goshala Act, 1950. (Bihar Act XXVIII of 1950)

To,

.....

.....

.....

Whereas I have reasons to believe or have received complaint, under Section 7 (i) of the Act about the unsatisfactory condition of your Goshala, you are hereby directed to appear before me in person or through authorised agent at the following place, date and time with the following relevant papers for inspection:-

Place of hearing.....

Date.....

Time.....

Relevant papers to be produced:-

(a)

The details of the property appertaining to the Goshala;

(b)

The name and address of the trustee of the Goshala;

(c)

The mode of succession to the office of the Goshala;

(d)

The income and expenditure of the Goshala; and

(e)

The sources of income of the Goshala.

Dated.....200.

Registrar of Goshalas, Bihar

Form VIII

(Rule 10)

Area fixation form under Section 9 (i) of the Bihar Goshala Act, 1950 (Bihar Act XXVIII of 1950)

To,

.....

.....

.....

The area for your Goshala is hereby fixed as follows bounded by:-

North.....

South.....

East.....

West

Director of Animal Husbandry, Bihar.

Dated..... 200.

Form IX

(Rule 11)

Notice to traders for payment of charitable levies under Section 9 (2) of the Bihar Goshala Act, 1950 (Bihar Act XXVIII of 1950)

To

.....

.....

.....

Whereas on information I am satisfied that you are realising charitable levy (Dharmadan, Punyakhata, Laga) from your customers and you have been wilfully not paying the said levies to the Goshala of your area known....as required by

Section 9 (1) of the Bihar Goshala Act, 1950 and it is believed that a considerable amount is lying with you. You are therefore directed to appear in person or through authorised agent before me at the following place, date and time with the following relevant papers for inspection:-

Place of hearing.....

Date.....

Time.....

Relevant papers to be produced-

(a)

Account Book for the year or years.

Seal.

Registrar of Goshalas, Bihar.

Date.....200.

Form X

(Rule 13)

Notice of demand under Section 10 of the Bihar Goshalas Act, 1950

(Bihar Act XXVIII of 1950)

To

.....

.....

.....

Please take notice that you have failed to deposit the fee required to be paid under Section 10 of the Bihar Goshala Act, 1950 for the period.....

You are therefore directed to pay the same by means of a bank draft or by Crossed Postal Order in favour of the Registrar of Goshalas by the.....

Registrar of Goshalas, Bihar.

Dated.....200.

Form XI

(Rule 14)

Notice of demand under Section 11 read with Section 9 (1) of the Bihar Goshala Act, 1950 (Bihar Act XXVIII of 1950)

(For traders)

To

.....

.....

.....

Please take notice that after inspection of your account book I am satisfied that you are liable to pay Rs...to the Goshala known as.....you are, therefore, required to deposit the amount by.....with the trustee of the said Goshala or in my office.

Dated.....200.

Signature

Form XII

(Rule 14)

Notice of demand under Section 11 read with Section 10 of the Bihar Goshala Act, 1950 (Bihar Act XXVIII of 1950)

(For Goshalas)

Please take notice that after necessary verification, it has been found that..... rupees is due from you as fee payable under Section 10 of the Bihar Goshala Act, 1950. You are, therefore, requested to pay the same by means of a bank draft or by crossed postal order by the.....

Dated.....200.

Signature.

Form XIII

(Rule 15)

Form under Section 12 of the Bihar Goshala Act, 1950 (Bihar Act XXVIII of 1950)

(Form of Income and Expenditure)

Name of Goshala

Date of Establishment

Place

Statement of accounts for the year 200.....

200.....

Serial no.

Receipt

AmountRs.

Serial no.

Expenditure

AmountRs.

1

Briti, donation, gift, subscription, etc.

...

1

To rent, taxes, etc.

...

2

By sale of milk

...

2

Purchase of fodder, live stock, implement etc.

...

3

By sale of live-stock and manure.

...

3

Establishment and miscellaneous expenditure.

...

4

By rent, revenue and sale of produce.

...

4

Contingency.

...

Total

...

Total

...

Form XIV

[Under Section 12 (1), Rule 19]

Audit note

1. Duration of audit

2. Name of Goshala Address:-

3. Registration No.:-

4. Is the Goshala affiliated with the Bihar State Goshala Pinjrapole Federation?

5. Date on which audit note was ready.

6. Date of submission of Audit Note to the following-

(1)

Registrar of Goshalas,

Bihar

Date

(2)

The Secretary of Goshala Date

7. Date

Place

8. List of office-bearers and employees present during audit period.

No.

Name

Designation

No.

Name

Designation

9. Name of office bearers and members of the Working Committee.

No.

Name

Designation

Address

10. List of paid employee.

No.

Name

Designation

Salary

No.

Name

Designation

Salary

11. Balance on the date of audit.

12. Mention of contravention of the Act, the Rules and Regulation.

13. Examination of cases of contravention of the resolutions adopted by the last general meeting.

14. Examination of prescribed account and other registers and comment, if any.

15. Examination of all items of the expenditure and income including contingency, travelling allowance, etc, and mention of unauthorised items of expenditure with suggestions of ways, means and action for realization of the same from persons.

16. Liabilities and assets with comments.

17. Verifications of the record of land, building and checking the income and expenditure in respect of them.

18. Full details and particulars of investment in Bank, etc.

19. Checking of figures entered in the Pass Book of Bank, etc., and result.

20.

Levy to Bihar Goshala Fund.

21.

Contribution to the State Goshala Pinjrapole Federation.

22.

Statement of cattle

Cow

Bullock

Bull

Male calf

Female calf

Other animals

Total

Productive
Unproductive
Productive
Unproductive
Productive
Unproductive
Productive
Unproductive

1
2
3
4
5
6
7
8
9
10
11
12

Balance from
1st year
By gift
By birth
Purchase
Total
Gift
Contingent
Total
Balance

23.
Figures of milk and milk products of last five years.
Years

No. of Milk cattle
Milk in maunds
Year
No of milk cattle
Milk in maunds

1
2
3
4
5
6
200
200
200
200
200
200
200

200

24.

List of articles and furniture...

25.

List of arrear, Briti, advance, donations, etc., and comments:-

26.

Statement of income and expenditure.

From year.....date

to year....

Income

Rs. P.

Expenditure

Rs. P.

Sale of milk

...

Fodder

...

Sale of manure

...

Cake

...

Donation and subscription

...

Grain

...

Briti

...

Purchase of cattle

...

Gopastmi

...

Purchase of land

...

Sale of land produce

...

Repair of buildings

...

House rent

...

Salary

...

Sale of cattle

...

Travelling allowance

...

Income on immovable property

...

Contingency

...

Contingent

...

27.

Details of assets and liabilities.

28.

Note:-

Auditor

Related AI tags, queries and research notes

Translation